



Notification Waiver Determination

Google Australia – infeasible rights to use terrestrial dark fibre from Telstra

Acquisition	Google Australia Pty Ltd (Google Australia) and Google Singapore Pte. Ltd. (Google Singapore) applied for a notification waiver in respect of their proposed acquisition of infeasible rights to use (IRUs) certain dark fibre pairs from subsidiaries of Telstra Group Limited, Telstra Singapore Pte. Ltd. (Telstra Singapore) and Telstra Corporation Limited (Telstra Corporation), as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition involves: • Google Australia acquiring from Telstra Corporation IRUs certain dark fibre pairs on specified routes on Telstra's terrestrial Aura Network, and associated colocation services, for a minimum term of 15 years; and • Google Singapore acquiring from Telstra Singapore rights for Google Australia (or another affiliate) to acquire additional IRUs for dark fibre pairs on the Aura Network, and associated colocation services.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	13 July 2026

Parties to the Acquisition	Google Australia and Google Singapore, are indirect subsidiaries of Google LLC (together, Google Group), a Delaware limited liability company owned by Alphabet, Inc. Telstra Singapore Pte. Ltd. (Telstra Singapore) and Telstra Corporation Limited (Telstra Corporation) are subsidiaries of Telstra Group Limited (Telstra), a telecommunications and technology company with its primary operations in Australia. The Acquisition concerns rights to use dark fibre pairs on Telstra's Aura Network, a terrestrial network of fibre optic cables. Fibre optic networks allow large volumes of data to be transmitted quickly and reliably over long distances.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - post-Acquisition, Google Group’s share of fibre pairs and/or capacity on each of the terrestrial cables the subject of the Acquisition is expected to be small - there are alternative providers of terrestrial dark fibre and capacity on terrestrial cables in Australia - the Acquisition is unlikely to foreclose access to the remaining fibre pairs on the relevant terrestrial cables or to capacity on alternative terrestrial cables in Australia for Google Group’s downstream rivals. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act